

STATE OF MICHIGAN
IN THE THIRD JUDICIAL CIRCUIT FOR THE COUNTY OF WAYNE
FAMILY DIVISION, DOMESTIC RELATIONS

ADRIENNE MARJORIE ROCKENHAUS,
Plaintiff/Counter-Defendant,

v.

CONRAD ALAN ROCKENHAUS,
Defendant/Counter-Plaintiff.

Case No. **26-104594-DO**

Hon. **Nicole N. Goodson**

**DEFENDANT/COUNTER-PLAINTIFF'S MOTION TO DETERMINE
SUFFICIENCY OF ANSWERS TO REQUESTS FOR ADMISSIONS, TO
COMPEL RESPONSES TO INTERROGATORIES AND REQUESTS FOR
PRODUCTION OF DOCUMENTS, AND FOR DISCOVERY SANCTIONS**

NOW COMES Defendant/Counter-Plaintiff Conrad Alan Rockenhaus, appearing pro se, and respectfully moves this Court pursuant to MCR 2.312(B), MCR 2.313(A), and MCR 2.313(B) for (1) an order determining that Plaintiff/Counter-Defendant's Answers to Defendant's First Set of Requests for Admissions are insufficient and that the matters are deemed admitted, (2) an order compelling responses to Defendant's First Set of Interrogatories (Nos. 1 through 20) and Defendant's First Set of Requests for Production of Documents, and (3) sanctions under MCR 2.313(B) up to and including entry of default judgment on Defendant/Counter-Plaintiff's Counterclaim as a discovery sanction. In support, Defendant/Counter-Plaintiff states as follows.

INTRODUCTION

This motion addresses three separate discovery failures by Plaintiff/Counter-Defendant, all arising from the same single discovery package served by Defendant on April 16, 2026.

First, on May 13, 2026, Plaintiff/Counter-Defendant served Answers to Defendant's First Set of Requests for Admissions in which every one of fifty-three responses is the verbatim identical canned formula, "Plaintiff cannot truthfully admit nor deny for lack of information or knowledge. Plaintiff has made reasonable inquiry and the information known or readily obtainable is insufficient at this time to enable Plaintiff to admit or deny the request for admission." That formula appears as the entire substantive answer to requests concerning Plaintiff's own visits to FCI Milan, her own letters and packages sent to Defendant, her own TRULINCS messages, her own sworn declarations filed in federal court, her own published blog and social media content, her own access to Defendant's financial accounts, her own tax filings, her own emails to Defendant's federal appellate attorney (including emails with text quoted verbatim in the requests), her own statements to the Redford Township Police Department, her own communications with Ann Helgren, her own possession of Defendant's identification and personal property, and her own statements made in her own Petition for Personal Protection Order. A party cannot, in good faith, claim ignorance of her own conduct, her own filings, and her own statements. The Answers are insufficient as a matter of law

under MCR 2.312(B), and the matters should be deemed admitted under MCR 2.312(B)(3).

Second, thirty-two days have elapsed since the twenty-eight-day response deadline for Defendant's First Set of Interrogatories. No Answers have been served. The interrogatories ask Plaintiff/Counter-Defendant to identify financial accounts into which Defendant's VA Disability Compensation and SSDI benefits were deposited, to identify her access to Defendant's va.gov account using his id.me credentials, to provide a month-by-month accounting of the federally protected benefits she received as Defendant's purported fiduciary, to identify the location of Defendant's personal property and identification, and to identify her communications with Ann Helgren, the Redford Township Police Department, and federal authorities concerning Defendant. These are core subjects of Defendant's Counterclaim. Plaintiff/Counter-Defendant's silence on each is total.

Third, the same twenty-eight days have elapsed for Defendant's First Set of Requests for Production of Documents. Not a single document has been produced and no response has been served. The Requests seek the documentary record of Plaintiff/Counter-Defendant's diversion of approximately \$39,326.87 in federally protected benefits, her communications with the VA and Social Security Administration, her communications with Ann Helgren regarding Defendant's release, her statements to law enforcement, her medical records access through Defendant's id.me credentials, her tax filings, her trust account records, and her social media and blog publications concerning Defendant. None has been produced.

Plaintiff/Counter-Defendant's pattern is selective response and strategic silence. On the same day Plaintiff's counsel served the defective RFA Answers, Plaintiff's counsel filed a Motion to Set Aside Default of Counterclaim in which counsel admits, on the record, that "[t]he attorney client relationship between Plaintiff/Counter-Defendant and Aldrich legal services has broken down entirely making it impossible for Aldrich Legal Services to respond to Defendant/Counter-Plaintiff's filings." (Motion to Set Aside Default ¶ 17.) Plaintiff/Counter-Defendant's discovery default is a continuation of the same pattern of non-engagement that produced the underlying default on the Counterclaim itself.

The remedies available to the Court under MCR 2.312(B) and MCR 2.313(B) include, but are not limited to, orders deeming matters admitted, orders treating matters as established, orders refusing to allow Plaintiff/Counter-Defendant to support or oppose designated claims or defenses, orders striking pleadings, and entry of default judgment on the Counterclaim as a discovery sanction independent of the Counterclaim default already entered by the Clerk on May 12, 2026. Defendant respectfully requests the relief specified in Section VII.

I. PROCEDURAL POSTURE

1. Plaintiff/Counter-Defendant filed her Complaint for Divorce on April 9, 2026.
2. Defendant/Counter-Plaintiff was personally served on April 14, 2026, and filed his Answer, Affirmative Defenses, and Counterclaim on April 15, 2026. The Counterclaim, at Paragraphs 24 through 62, alleges, among other matters: unauthorized access to Defendant's va.gov account using his id.me credentials; redirection of his VA Disability Compensation direct deposit during his federal incarceration; diversion of approximately \$39,326.87 in federally protected benefits; SSA Representative Payee fraud generating a \$12,074.50 federal overpayment demand; abuse of Power of Attorney; false statements to the Redford Township Police Department on March 2, 2026; pre-release coordination with Ann Helgren designed to render Defendant homeless on release from federal custody; retaliatory PPO; and wrongful retention of Defendant's premarital domains and personal property.

3. On April 16, 2026, Defendant served the following three discovery sets on Plaintiff/Counter-Defendant by both electronic mail and First Class United States Mail:
 - a. **Defendant's First Set of Interrogatories to Plaintiff** (thirty-seven numbered Interrogatories; subject to Defendant's contemporaneously filed Motion for Leave to Serve Excess Interrogatories addressing the seventeen Interrogatories beyond the MCR 2.309(A)(1) twenty-question default limit);
 - b. **Defendant's First Set of Requests for Production of Documents to Plaintiff** (fifty-eight numbered Requests under MCR 2.310, which has no numerical limit); and
 - c. **Defendant's First Set of Requests for Admissions to Plaintiff** (fifty-three numbered Requests under MCR 2.312).
 4. Service was effected on counsel of record Lisa R. Baker at lisabaker@aldrichlegalservices.com with cc to paralegal Kristen K. Sinkiewicz at kris@aldrichlegalservices.com on April 16, 2026 at approximately 04:56 UTC, and by First Class United States Mail to Aldrich Legal Services, PLLC, 276 South Union Street, Plymouth, Michigan 48170, postage prepaid, the RFA component of which carries USPS Priority Mail tracking number 9505 5066 1751 6105 2324 81 with delivery confirmation of April 17, 2026.
 5. The twenty-eight-day response deadlines under MCR 2.309(B)(3), MCR 2.310(C)(2), and MCR 2.312(B)(1) expired on May 14, 2026, computed from the date of electronic service, and at the outside boundary on May 18, 2026, computed from the date of physical mail delivery with the three-day mail rule under MCR 1.108(1) applied (May 17, 2026 being a Sunday).
 6. No extension of any response deadline was sought by Plaintiff/Counter-Defendant. No stipulation extending any deadline was executed. No motion for protective order or for relief from the response deadlines was filed.
 7. On May 13, 2026 at 11:14 UTC, Defendant transmitted to Lisa R. Baker, with copy to Kristen K. Sinkiewicz, a written meet-and-confer communication pursuant to MCR 2.313(A)(2)(a) identifying that responses to all three discovery sets remained outstanding past the response deadline and requesting either prompt service of responses or a conference. The meet-and-confer communication is preserved in Defendant's email archive.
 8. At 17:10 UTC on the same date, Plaintiff/Counter-Defendant served, by email and First Class Mail, the following three documents only:
 - a. Plaintiff's Answers to Defendant's First Set of Requests for Admissions to Plaintiff;
 - b. Answer to Part III. Counterclaim for Divorce; and
 - c. Plaintiff/Counter-Defendant's Verified Motion to Set Aside Default of Counterclaim.
- Plaintiff/Counter-Defendant did not serve Answers to Defendant's First Set of Interrogatories. Plaintiff/Counter-Defendant did not serve responses to Defendant's First Set of Requests for Production of Documents. Plaintiff/Counter-Defendant did not produce any document. The selective response confirms that counsel received and reviewed Defendant's meet-and-confer communication transmitted six hours earlier and elected to respond to one of three discovery sets while leaving the other two unanswered.
9. As of the date of this Motion, Defendant has not received Answers to Interrogatories, responses to Requests for Production, or any document production from Plaintiff/Counter-Defendant.
 10. The Court entered default against Plaintiff/Counter-Defendant on the Counterclaim on

May 12, 2026, on grounds of failure to plead. Defendant's Motion for Default Judgment on the Counterclaim, pursuant to MCR 2.603(B)(3), is pending. Plaintiff/Counter-Defendant's Motion to Set Aside Default of Counterclaim, filed May 13, 2026, is pending and set for hearing on May 20, 2026 at 9:15 AM via Zoom before this Court. The relief sought in this Motion is independent of and additional to the relief sought in the pending Motion for Default Judgment, as discovery sanctions under MCR 2.313(B) furnish a second and independently sufficient ground for the same ultimate relief.

11. Pursuant to MCR 2.119(C)(2) and LCR 2.119(B)(1), Defendant transmitted a Request for Concurrence in the relief sought by this Motion to Lisa R. Baker, with copy to Kristen K. Sinkiewicz, on May 15, 2026 at 14:50 UTC. Concurrence could not reasonably be obtained for the reasons stated in Aldrich Legal Services' May 13, 2026 email to chambers (cc'd to Defendant) in which counsel stated that "[w]e are not in a position to grant concurrence on any of the requested relief at this time." No response to the May 15, 2026 concurrence request has been received from Counter-Defendant's counsel as of the date of this filing.

II. THE RFA ANSWERS ARE INSUFFICIENT AS A MATTER OF LAW

A. Legal Standard

Under MCR 2.312(B)(1), a party served with a Request for Admission must, within twenty-eight days, serve a written answer or objection. The Rule prescribes the form of a permissible answer:

*The answer must specifically deny the matter or state in detail the reasons why the answering party cannot truthfully admit or deny the matter. A denial must fairly meet the substance of the requested admission, and when good faith requires that a party qualify an answer or deny only a part of the matter of which an admission is requested, the party shall specify so much of it as is true and qualify or deny the remainder. **An answering party may not give lack of information or knowledge as a reason for failure to admit or deny unless the party states that he or she has made reasonable inquiry and that the information known or readily obtainable is insufficient to enable the party to admit or deny.***

MCR 2.312(B)(1) (emphasis added).

Under MCR 2.312(B)(3), the propounding party "may move to determine the sufficiency of the answers or objections":

*Unless the court determines that an objection is justified, it shall order that an answer be served. **If the court determines that an answer does not comply with the requirements of this rule, it may order either that the matter is admitted or that an amended answer be served.** The court may, in lieu of these orders, determine that final disposition of the request be made at a pretrial conference or at a designated time prior to trial.*

MCR 2.312(B)(3) (emphasis added).

The "reasonable inquiry" qualifier in MCR 2.312(B)(1) is not a magic phrase. A party who recites the words "reasonable inquiry" without conducting any inquiry, or who recites the phrase as boilerplate for matters that are within the party's own personal knowledge, has not satisfied the rule. The rule "imposes upon a party a positive duty to make reasonable inquiry

concerning matters in which the responding party may not currently have direct knowledge but which are reasonably within his power to ascertain." *Medbury v Walsh*, 190 Mich App 554, 556; 476 NW2d 470 (1991). When the matter is within the party's own personal knowledge, no inquiry is required, and the boilerplate recitation is dispositively insufficient.

B. Application: Every Answer Is Identical

Plaintiff/Counter-Defendant served fifty-three Answers to Defendant's Requests for Admissions on May 13, 2026. The substantive answer to each of the fifty-three Requests, without variation, is:

Plaintiff cannot truthfully admit nor deny for lack of information or knowledge. Plaintiff has made reasonable inquiry and the information known or readily obtainable is insufficient at this time to enable Plaintiff to admit or deny the request for admission.

The verbatim formula appears as the substantive answer to RFA Nos. 1 through 53 inclusive. There is no qualification. There is no partial admission. There is no specific denial. There is no statement explaining what "reasonable inquiry" was made or why the matter is not within Plaintiff/Counter-Defendant's personal knowledge.

A formulaic, undifferentiated response of identical phrasing to fifty-three distinct factual requests does not satisfy MCR 2.312(B)(1). It also strains credulity. The Requests cover discrete factual matters about Plaintiff/Counter-Defendant's own life, her own actions, her own writings, her own statements to others, and her own possessions over a defined period. They are not requests concerning the conduct of strangers, ancient history, or matters outside her knowledge.

C. Specific Examples of Facial Insufficiency

The insufficiency is most clearly visible in the categories of Requests that concern matters obviously and exclusively within Plaintiff/Counter-Defendant's own knowledge:

Visits to FCI Milan (RFAs 1-4). Whether Plaintiff/Counter-Defendant visited Defendant at a federal correctional institution at any time is a binary historical fact known to her. The Bureau of Prisons maintains visitation logs that are obtainable by Plaintiff/Counter-Defendant upon request. The answer "cannot truthfully admit nor deny for lack of information" to "You visited Conrad Alan Rockenhaus at FCI Milan on at least one occasion" is facially insufficient.

Correspondence to and from Defendant (RFAs 5-9). Whether Plaintiff/Counter-Defendant received letters from Defendant during his incarceration, whether she sent him a handwritten letter in or about November 2025, whether she sent him Priority Mail Express packages, and whether she forwarded a particular envelope to the Robert J. Delonis Center after the PPO was filed are facts about her own actions. The post offices, the Bureau of Prisons mail logs, and her own household are obvious sources of "reasonable inquiry." The identical boilerplate is insufficient.

TRULINCS messages (RFAs 10-13). Whether Plaintiff/Counter-Defendant communicated with Defendant via the federal Bureau of Prisons electronic messaging system, whether she sent messages containing specifically quoted phrases such as "I love you," "Hey Baby," and "I miss you like crazy," and whether she sent a message on October 28, 2025 concerning Defendant's VA pay deposit, are facts entirely within her personal knowledge. TRULINCS messages are also preserved by the Bureau of Prisons and obtainable by Plaintiff/Counter-Defendant. The boilerplate is insufficient.

Sworn federal court declarations (RFAs 14-17). Whether Plaintiff/Counter-Defendant

filed sworn declarations in *Rockenhaus v. Agapiou*, Case No. 2:25-cv-12716 (E.D. Mich.) identifying herself as Defendant's wife and next friend, whether she filed nine or more such declarations between September 2025 and January 2026, whether she filed a Notice of Appeal in *Rockenhaus v. Pringle*, Case No. 2:25-cv-12913 (E.D. Mich.) on or about January 21, 2026, and whether she described herself in those filings as Defendant's devoted wife and advocate, are facts about her own sworn filings in federal court. PACER, accessible to any member of the public, returns the filings on a one-minute search. To claim "lack of information or knowledge" of her own federal court filings, on which she swore under penalty of perjury, is impermissible.

Published blog and social media content (RFAs 18-22). Whether Plaintiff/Counter-Defendant published blog posts on rockenhaus.com advocating for Defendant's release, whether she posted content on X (Twitter), Facebook, and Threads on the same subject, whether she redirected her personal domain adezero.com to rockenhaus.com, whether she posted a Valentine's Day message of affection directed at Defendant on or about February 14, 2026, and whether she published content on rockenhaus.com, fitspo.net, or lawflaws.com after the PPO was filed, are facts about her own authorship of her own published content. Plaintiff/Counter-Defendant controls the domains, the hosting accounts, and the social media accounts in question. The boilerplate is insufficient.

Financial accounts and tax filings (RFAs 23-28). Whether Plaintiff/Counter-Defendant received VA Disability Compensation payments belonging to Defendant into a bank account under her control between September 2025 and February 2026, whether she received SSDI benefit payments belonging to Defendant in her capacity as SSA-appointed Representative Payee between November 2025 and March 2026, whether she accessed Defendant's va.gov account using his id.me credentials, whether she filed federal income tax returns for 2023 and 2024 as married filing separately, and whether the Social Security Administration issued a \$12,074.50 overpayment demand to her as Representative Payee, are facts about her own financial transactions, her own tax filings, and her own correspondence with federal agencies. Bank statements, tax preparer files, and SSA correspondence are within her exclusive possession or readily available to her. The boilerplate is insufficient.

Emails to Defendant's federal appellate attorney with verbatim quoted text (RFAs 29-34). Whether Plaintiff/Counter-Defendant sent an email on or about February 9, 2026 to Defendant's federal appellate attorney stating that Defendant would be released with "\$0.00 accessible cash," whether she sent communications on the same date stating that she had "formally revoked [her] residence as a release option" for Defendant, that she was "retaining family counsel to secure a restraining order," and whether she sent a communication on or about February 12, 2026 titled "NOTICE OF EVIDENCE: Documented History of Sexual Assault and Facilitated Violence" containing the quoted statement "[t]o be absolutely clear about the divorce and PPO I am filing at 8:00 AM tomorrow: do not mistake my intent for bluff," are facts about her own emails sent from her own email account with text quoted verbatim. To respond "cannot truthfully admit nor deny for lack of information" to a request reciting her own words is the paradigm of an insufficient answer.

Statements to the Redford Township Police Department on March 2, 2026 (RFAs 35-38). Whether Plaintiff/Counter-Defendant made statements to the Redford Township Police Department on March 2, 2026 regarding Defendant's residency at 26695 Ross Drive, whether she told the Department that Defendant had never resided at that address, whether she communicated with Ann Helgren on the same date regarding Defendant, and whether she instructed Ms. Helgren to report Defendant as suicidal to any person or institution, are facts about her own statements made to law enforcement on a specific date and her own communications with a specific witness. The boilerplate is insufficient.

Possession of Defendant's identification and personal property (RFAs 41-42).

Whether Plaintiff/Counter-Defendant retains possession of Defendant's driver's license, VA ID, Social Security card, birth certificate, and DD Form 214, and whether she retains possession of Defendant's Apple iPhone 16e, iPhone 15 Pro Max, Apple Watch, AirPods, iPad, and Mac Mini, are facts about what is physically located in her home. The boilerplate is insufficient.

Her own Petition for Personal Protection Order (RFAs 52-53). Whether her own Petition for Personal Protection Order filed February 20, 2026 stated that the parties do not currently reside together, and whether her own Petition referred to 26695 Ross Drive as "my home," are facts about her own sworn filing, a document she signed, in another case in this same Court. The boilerplate is insufficient.

D. The Pattern Is Strategic, Not Investigative

The identical phrasing across fifty-three Requests, the absence of any specific denial or qualification, the absence of any acknowledgment of any underlying fact that is plainly true, and the application of the identical formula to Plaintiff/Counter-Defendant's own conduct, her own writings, and her own filings, demonstrate that no inquiry was undertaken. The Answers are litigation choreography, not discovery. As this Court is aware from the Verified Motion to Set Aside Default of Counterclaim, Plaintiff/Counter-Defendant's counsel itself represents, at Paragraph 16 of that Motion, that "[o]n April 24, 2026, Plaintiff/Counter-Defendant instructed Aldrich Legal Services not to continue with this case, and that Plaintiff/Counter-Defendant would not read or respond to emails from Aldrich Legal Services." Plaintiff/Counter-Defendant's own counsel describes a client who would not engage. The fifty-three identical Answers are the product not of "reasonable inquiry" but of total client non-engagement.

E. The Same Pattern Appears in the Late Answer to Counterclaim

The same verbatim-near-identical boilerplate appears in Plaintiff/Counter-Defendant's late-filed Answer to Part III. Counterclaim for Divorce, served the same day, at Paragraphs 24 through 62. Each paragraph receives the substantive response "[Paragraph X] can neither be admit nor denied for lack of sufficient information available, and leaves Defendant/Counter-Plaintiff to his proofs." Defendant has separately addressed the procedural and substantive defects in that filing in his Response in Opposition to Motion to Set Aside Default, filed May 14, 2026. The Court's authority to find the proposed Answer inadequate to support a meritorious defense under MCR 2.603(D)(1) is closely related to, but procedurally distinct from, its authority to find the RFA Answers insufficient under MCR 2.312(B)(3). Both findings are warranted on the same factual record.

F. Requested Relief Under MCR 2.312(B)(3)

The Court should determine, pursuant to MCR 2.312(B)(3), that Plaintiff/Counter-Defendant's Answers to Defendant's First Set of Requests for Admissions Nos. 1 through 53 are insufficient and that the matters set forth in those Requests are deemed admitted.

III. PLAINTIFF/COUNTER-DEFENDANT HAS FAILED TO ANSWER THE INTERROGATORIES

A. Legal Standard

MCR 2.309(B)(3) requires that interrogatories be answered separately, fully, in writing, and under oath within twenty-eight days of service. MCR 2.313(A)(2)(b) authorizes a party seeking discovery to move for an order compelling answers when a party "fails to answer an interrogatory submitted under MCR 2.309." MCR 2.313(A)(2)(a) requires that the motion

include a certification that the movant has in good faith conferred or attempted to confer with the party failing to respond.

B. Failure to Answer Is Total

Plaintiff/Counter-Defendant has not served Answers to any Interrogatory in Defendant's First Set of Interrogatories. The twenty-eight-day deadline under MCR 2.309(B)(3) expired on May 14, 2026 by electronic service and, at the outside, on May 18, 2026 by physical mail service with the three-day mail rule applied. No extension was sought. No protective order was sought. No partial response of any kind has been received as of the date of this Motion. The certification of meet-and-confer under MCR 2.313(A)(2)(a) is satisfied by the May 13, 2026 11:14 UTC written communication described in Section I.7 above. Plaintiff/Counter-Defendant's selective service of RFA Answers six hours after that communication, in the same email package that omitted Interrogatory Answers and RFP responses, confirms that the meet-and-confer was received and considered.

C. Subject Matter of the Interrogatories

The First Set of Interrogatories on which Defendant moves to compel covers Nos. 1 through 20. The relief Defendant seeks in this Motion is without prejudice to Defendant's separately pending Motion for Leave to Serve Excess Interrogatories addressing the remaining Interrogatories Nos. 21 through 37. The first twenty Interrogatories address the following core subjects of the Counterclaim:

Interrogatories 1-4 (Financial accounts). Identification of every bank, credit union, PayPal, Venmo, Cash App, and cryptocurrency wallet account Plaintiff/Counter-Defendant held, controlled, or had access to between January 1, 2023 and the present; identification of every account into which Defendant's VA Disability Compensation payments and SSDI benefits were deposited between September 2025 and the present; and identification of whether and when Plaintiff/Counter-Defendant accessed Defendant's va.gov account using his id.me credentials.

Interrogatories 5-7 (VA and SSDI benefits). Month-by-month accounting of VA Disability Compensation belonging to Defendant that Plaintiff/Counter-Defendant received, accessed, controlled, or disbursed between September 2025 and the present; month-by-month accounting of SSDI benefits belonging to Defendant that Plaintiff/Counter-Defendant received, controlled, or disbursed in her capacity as SSA-appointed Representative Payee; and identification of the representations she made to Defendant or to his counsel regarding the status of his SSDI payments between September 2025 and March 2026.

Interrogatories 8-9 (Personal property and domains). Identification of all personal property belonging to Defendant currently in Plaintiff/Counter-Defendant's possession (including his identification, financial documents, and Apple electronics), with current location; and identification of every internet domain previously registered to or used by Defendant (including rockenhaus.com, skyphusion.com, and greyponyit.com) that Plaintiff/Counter-Defendant possesses, controls, or has access to.

Interrogatories 10-14 (Communications and pre-release conduct). Identification of all communications with Ann Helgren between February 1, 2026 and March 7, 2026, including any instructions to report Defendant as suicidal; identification of all pre-release planning, communications, coordination, or actions between January 1, 2026 and March 7, 2026 in preparation for Defendant's March 2, 2026 release from federal custody; identification of communications with Krystal McConico, Veterans Homelessness Social Worker at the Robert J. Delonis Center; identification of communications with the Redford Township Police Department on or about March 2, 2026, including statements regarding Defendant's

residency at 26695 Ross Drive and his mental health status; and identification of any forwarding of correspondence originally sent by Defendant from FCI Milan.

Interrogatories 15-18 (PPO and related proceedings). Identification of communications with persons other than retained counsel regarding the decision to file the PPO (Case No. 26-102221-PP) on February 20, 2026, including timing relative to Defendant's February 18, 2026 Motion to Sever in federal court; identification of communications with Defendant's federal appellate attorney between January 1, 2026 and March 2, 2026; identification of every incident of alleged abuse, harassment, or threatening conduct relied upon in the PPO Petition, with date, location, nature, police report status, and medical treatment status; and identification of every source from which Plaintiff/Counter-Defendant obtained Defendant's private records, communications, medical information, prescription records, or digital account data submitted or referenced in the PPO petition, including how each item was obtained, authorization for access, and the proceeding in which it was used.

Interrogatories 19-20 (BOP records access and shared subscriptions). Identification of whether and how Plaintiff/Counter-Defendant contacted the Bureau of Prisons or FCI Milan to request or obtain Defendant's medical, mental health, psychiatric, medication, or other protected health information, including the basis claimed for the request, what was provided, and to whom it was disclosed; and identification of every person added to a YouTube Premium, Google One, Apple Family Sharing, or other shared subscription account during the marriage, with name, date of addition, payment source, and nature of relationship.

D. The Information Sought Is Central, Not Peripheral

The Interrogatories track the operative allegations of the Counterclaim. Plaintiff/Counter-Defendant cannot litigate this divorce, oppose Defendant's Counterclaim, or claim a meritorious defense while categorically refusing to identify the accounts into which she deposited Defendant's federally protected benefits, the dates and methods by which she accessed his federal accounts, the location of his identification and personal property, and the content of her communications with the witness through whom she allegedly engineered his homelessness on release. The relief sought by Defendant in the Counterclaim, including disgorgement of diverted federal benefits, return of personal property and federal identification, and restoration of digital account access, cannot be evaluated without responses to these Interrogatories.

E. Requested Relief Under MCR 2.313(A)

The Court should order Plaintiff/Counter-Defendant to serve full and complete Answers to Defendant's First Set of Interrogatories Nos. 1 through 20, in writing and under oath, within fourteen days of entry of the Court's order, and to pay reasonable expenses incurred in obtaining the order pursuant to MCR 2.313(A)(5)(a). Defendant reserves the right to seek leave to compel Answers to Interrogatories Nos. 21 through 37 if and when his pending Motion for Leave to Serve Excess Interrogatories is granted.

IV. PLAINTIFF/COUNTER-DEFENDANT HAS FAILED TO RESPOND TO THE REQUESTS FOR PRODUCTION

A. Legal Standard

MCR 2.310(C)(2) requires that the party upon whom Requests for Production are served serve a written response within twenty-eight days, separately addressing each request and either agreeing to produce or stating an objection with reasons. MCR 2.310(C)(4) requires that documents agreed to be produced be made available either as kept in the usual course of business or organized to correspond to the categories in the request. MCR 2.313(A)(2)(b)

authorizes a motion to compel when a party "fails to respond that inspection will be permitted as requested or fails to permit inspection as requested." MCR 2.310 contains no numerical limit on the number of Requests for Production.

B. Failure to Respond Is Total

Plaintiff/Counter-Defendant has not served any written response to Defendant's First Set of Requests for Production of Documents. The twenty-eight-day deadline under MCR 2.310(C) (2) expired on May 14, 2026 by electronic service and on May 18, 2026 by physical mail service with the three-day mail rule applied. No documents have been produced. No objections have been served. No privilege log has been served. No protective order has been sought. The same meet-and-confer documented in Section I.7 covered the Requests for Production explicitly.

C. Subject Matter of the Requests

The First Set of Requests for Production seeks documentary discovery on the same core subjects as the Interrogatories, including:

- **Financial account records** (Requests 1-5): bank statements, account statements, and transaction records for every financial account Plaintiff/Counter-Defendant held, controlled, or had access to between September 1, 2025 and the present; records related to the SoFi account designated for Defendant's VA benefits; records showing deposit, transfer, withdrawal, or disbursement of his VA Disability Compensation and SSDI benefits; and communications with any financial institution regarding his federally protected benefits.
- **VA and SSA records** (Requests 6-10): communications with the Department of Veterans Affairs and the Social Security Administration; records of access to Defendant's va.gov account using his id.me credentials; records of the VA Office of Inspector General investigation (Case No. 2026-18750); and records of the \$12,074.50 SSA overpayment demand.
- **Communications with attorneys, witnesses, and law enforcement** (Requests 11-18): communications with Defendant's federal appellate attorney between January 1, 2026 and April 1, 2026; communications with Ann Helgren from February 1, 2026 through March 7, 2026; pre-release planning communications regarding Defendant's March 2, 2026 release; communications with Krystal McConico and Robert J. Delonis Center staff; communications with the Redford Township and Ann Arbor Police Departments; communications with VA Ann Arbor Healthcare System staff regarding Defendant's discharge and housing; and the complete unedited TRULINCS message record between Plaintiff/Counter-Defendant and Defendant.
- **Personal property, digital accounts, and medical records** (Requests 19-25): photographs and inventories of Defendant's personal property; domain records for rockenhaus.com, skyphusion.com, greyponyit.com, fitspo.net, lawflaws.com, adezero.com, and cannabytes.net; data extracted from Defendant's email and cloud accounts; medical, psychiatric, and prescription records obtained through Power of Attorney or VA portal access; records of attempts to obtain Defendant's protected health information from the Bureau of Prisons or FCI Milan; and records relating to BOP Care Level 4 designation and seizure disorder information obtained from BOP sources.
- **Cannabytes, LLC records** (Requests 26-31): financial records for Cannabytes, LLC from January 1, 2023 through the present; formation documents and officer designations; records of Defendant's role, title, compensation, and contributions; communications with U.S. Probation regarding Defendant's employment; records of new employees,

contractors, and members added since January 1, 2025; and records of technical access and system credentials reassignment.

- **PPO supporting materials and related federal court records** (Requests 32-38): materials relied upon in preparing the PPO Petition; communications with Dr. Robert Garcia regarding his December 11, 2025 letter; sworn declarations filed in *Rockenhaus v. Agapiou* and *Rockenhaus v. Pringle*; social media and blog content concerning Defendant since September 2025; communications with third parties regarding Defendant's incarceration and circumstances; communications with the Bureau of Prisons and FCI Milan; and the original physical correspondence Defendant sent from federal facilities during incarceration.
- **Power of Attorney records** (Requests 39-41): all communications by Plaintiff/Counter-Defendant while acting under or purportedly under the Power of Attorney; all documents she signed or submitted under the Power of Attorney; and all institutions she contacted in that capacity.
- **Tax filings, residence, trust account, id.me access, fundraising, family communications, and CHAMPVA** (Requests 42-58): complete federal and state income tax returns for 2023 and 2024; financial disclosure documents required by this divorce proceeding; residency documents; trust documents and Chase Bank account statements for the trust referenced in the PPO Petition; records of attorney fees paid from trust funds; communications with Rob Hein regarding Defendant or the trust; id.me access logs; records relating to any cryptocurrency fundraiser, crowdfunding campaign, or donation drive related to Defendant; communications with Defendant's mother Lenita Rockenhaus and other family members; and CHAMPVA enrollment and joint insurance policy records.

D. The Document Production Is the Documentary Predicate of the Counterclaim

Every category of Request for Production seeks documents central to one or more allegations of the Counterclaim. The financial records establish the diversion of federally protected benefits. The VA and SSA records establish Plaintiff/Counter-Defendant's unauthorized access. The communications with Ann Helgren and law enforcement establish the pre-release homelessness coordination and false statements to police. The Cannabytes records establish her wrongful exclusion of Defendant from the business. The federal court declarations establish her contemporaneous representations of devotion that contradict her later allegations in the PPO Petition. The trust account records establish her independent source of funds (which she did not disclose on her MCR 3.206(C) Verified Financial Information Form). Defendant cannot prove these claims at trial without documentary support, and the documents are in Plaintiff/Counter-Defendant's exclusive possession or control.

E. Requested Relief Under MCR 2.313(A)

The Court should order Plaintiff/Counter-Defendant to serve a written response to Defendant's First Set of Requests for Production within fourteen days of entry of the Court's order, and to produce all responsive documents (or, where withheld on privilege grounds, a privilege log conforming to MCR 2.302(B)(7)) within thirty days, and to pay reasonable expenses incurred in obtaining the order pursuant to MCR 2.313(A)(5)(a).

V. SANCTIONS UNDER MCR 2.313(B) ARE WARRANTED

A. Legal Standard

MCR 2.313(B)(2) authorizes the Court, upon failure of a party to obey an order to provide or permit discovery, or upon a discovery failure independently meriting sanctions, to make "such orders in regard to the failure as are just." The Rule provides a menu including:

(a) an order that the matters regarding which the order was made or any other designated facts may be taken to be established for purposes of the action in accordance with the claim of the party obtaining the order;

(b) an order refusing to allow the disobedient party to support or oppose designated claims or defenses, or prohibiting the party from introducing designated matters in evidence;

(c) an order striking pleadings or parts of pleadings, staying further proceedings until the order is obeyed, dismissing the action or proceeding or a part of it, or rendering a judgment by default against the disobedient party;

(d) in lieu of or in addition to the foregoing orders, an order treating as a contempt of court the failure to obey any orders except an order to submit to a physical or mental examination;

(e) where a party has failed to comply with an order under MCR 2.311(A) requiring the party to produce another for examination, such orders as are listed in subrules (B)(2)(a), (b), and (c), unless the party failing to comply shows that he or she is unable to produce the other person.

MCR 2.313(B)(2) (emphasis added).

In addition to or in lieu of the foregoing orders, the Court "shall require the party failing to obey the order or the attorney advising the party, or both, to pay the reasonable expenses, including attorney fees, caused by the failure, unless the court finds that the failure was substantially justified or that other circumstances make an award of expenses unjust." MCR 2.313(B)(2).

B. The Sanctions Calculus

The Michigan Supreme Court has identified the factors that guide a trial court's exercise of discretion in selecting sanctions under MCR 2.313(B)(2), including (1) whether the violation was wilful or accidental, (2) the party's history of refusing to comply with discovery requests, (3) the prejudice to the opposing party, (4) any actual notice to the defaulting party of the consequences of non-compliance, (5) attempts to correct the violation, (6) compliance with the time limits set by the rules, (7) whether the failure to provide discovery is part of a broader pattern of contumacious behavior, and (8) the appropriateness of a lesser sanction. *Frankenmuth Mut Ins Co v ACO, Inc*, 193 Mich App 389, 397; 484 NW2d 718 (1992); *Bass v Combs*, 238 Mich App 16, 26; 604 NW2d 727 (1999).

Each factor cuts decisively against Plaintiff/Counter-Defendant.

Wilfulness. Plaintiff/Counter-Defendant's counsel received the meet-and-confer at 11:14 UTC on May 13, 2026, and responded six hours later with a partial filing that addressed only the easiest of three discovery sets while omitting the others. The selection of which discovery to answer and which to ignore was a deliberate litigation choice. The Verified Motion to Set Aside Default of Counterclaim, filed in the same package on the same day, candidly admits at Paragraph 17 that the attorney-client relationship has "broken down entirely" and that Plaintiff/Counter-Defendant will not respond to her own counsel's communications. The discovery default is the predictable outcome of that client posture, and it is wilful.

Pattern of non-compliance. The discovery default is part of a continuum of non-engagement. Plaintiff/Counter-Defendant failed to answer the Counterclaim by the May 6, 2026 deadline, resulting in entry of default by the Clerk on May 12, 2026. Plaintiff/Counter-Defendant's late-filed Answer to Counterclaim, served on the same May 13, 2026 date as the

RFA Answers, uses the same identical "can neither be admit nor denied for lack of sufficient information" boilerplate addressed in Defendant's Response in Opposition to Motion to Set Aside Default filed May 14, 2026. The pattern is comprehensive and consistent across her pleading, her RFA Answers, and her Interrogatory and RFP defaults.

Prejudice. Defendant is unable to obtain the documentary record that supports the central allegations of his Counterclaim, including unauthorized access to federally protected accounts, diversion of approximately \$39,326.87 in federal disability benefits, fraudulent statements to the Redford Township Police Department, and coordinated pre-release conduct designed to render him homeless. The information sought is in Plaintiff/Counter-Defendant's exclusive possession or control. Defendant has subpoenaed third-party sources (USAA, SoFi, PayPal, Venmo, CashApp, Qolity, the Bureau of Prisons, Livingston County Jail, and witnesses Helgren, Berente, and Martin) where third-party records exist, but the bulk of Plaintiff/Counter-Defendant's own communications, her own records, her own emails, and her own representations to third parties are unavailable from any source other than her direct production. The prejudice from continued non-production is severe and increases with each passing day.

Compliance with time limits. Zero of three discovery deadlines met. RFA response served on the cusp of the deadline, with content that fails to meet the rule. Interrogatory and RFP deadlines passed without response, partial response, objection, request for extension, or protective order.

Broader pattern of contumacious behavior. Beyond the litigation record, the surrounding factual record reflects total disengagement from this proceeding by Plaintiff/Counter-Defendant. Plaintiff/Counter-Defendant has been publicly silent on her primary social media account (@adezero) since April 11, 2026. Her residence at 26695 Ross Drive was found unoccupied during a welfare check on May 5, 2026. Her own counsel represents that she has refused to read or respond to counsel's emails since April 24, 2026. (Motion to Set Aside Default ¶ 16.) The discovery defaults are an extension of this pattern of withdrawal from any process that requires her participation or accountability.

Appropriateness of lesser sanction. A sanction less than entry of default judgment on the Counterclaim, or an order treating the matters set forth in the RFAs and Interrogatories as established, would reward continued non-engagement and provide no meaningful incentive for Plaintiff/Counter-Defendant to comply with future orders. Lesser monetary sanctions are not realistic given Plaintiff/Counter-Defendant's apparent departure from the jurisdiction and her admitted non-engagement with counsel.

C. The Independent Path to Default Judgment

Default has already been entered on the Counterclaim under MCR 2.603(A) for failure to plead. Defendant's Motion for Default Judgment under MCR 2.603(B)(3) is pending. The discovery sanctions sought in this Motion provide an independent and additional ground for the same ultimate relief, predicated not on failure to plead but on failure to participate in discovery. The two grounds reinforce each other: Plaintiff/Counter-Defendant's failure to answer the Counterclaim by the deadline produced the pleading default; her selective and non-responsive engagement with discovery produced the discovery default. Each, standing alone, supports the same relief; together they form a record on which the Court may enter default judgment with confidence that the result is not driven by procedural happenstance.

D. Requested Relief Under MCR 2.313(B)

Defendant requests that the Court enter sanctions under MCR 2.313(B)(2), in the following alternative formulations, in descending order of preference:

Primary relief. Enter default judgment on Defendant's Counterclaim as a discovery sanction under MCR 2.313(B)(2)(c), independent of the pending Motion for Default Judgment under MCR 2.603(B)(3), with the further finding that the matters set forth in Defendant's First Set of Requests for Admissions Nos. 1 through 53 are deemed admitted under MCR 2.312(B)(3), and that the factual matters within the scope of Defendant's First Set of Interrogatories Nos. 1 through 20 are deemed established under MCR 2.313(B)(2)(a).

Alternative relief. If the Court declines to enter default judgment as a discovery sanction at this stage, then (a) deem the matters in RFAs 1 through 53 admitted under MCR 2.312(B)(3); (b) deem the matters within the scope of Interrogatories 1 through 20 established under MCR 2.313(B)(2)(a); (c) prohibit Plaintiff/Counter-Defendant from supporting or opposing the Counterclaim's allegations of unauthorized access to federally protected accounts, diversion of federal disability benefits, fraudulent statements to law enforcement, abuse of Power of Attorney, and coordinated pre-release homelessness engineering under MCR 2.313(B)(2)(b); (d) order Plaintiff/Counter-Defendant to serve full and complete Answers to Interrogatories 1 through 20 and responses to all 58 Requests for Production within fourteen days of entry of the Court's order; and (e) award Defendant the reasonable expenses, including filing fees and costs of preparation, incurred in obtaining the order.

VI. RELATIONSHIP TO PENDING MOTIONS

This Motion is filed in coordination with, and additional to, the following pending matters before the Court:

1. **Defendant's Motion for Default Judgment on Counterclaim** (filed May 12, 2026 under MCR 2.603(B)(3)). The relief sought in the present Motion provides an independent and alternative path to the same ultimate disposition on the Counterclaim.
2. **Plaintiff/Counter-Defendant's Motion to Set Aside Default of Counterclaim** (filed May 13, 2026; set for hearing May 20, 2026 at 9:15 AM). Defendant's Response in Opposition was filed May 14, 2026. The discovery defaults documented in the present Motion provide further independent support for denial of the Motion to Set Aside. Plaintiff/Counter-Defendant cannot establish a meritorious defense under MCR 2.603(D) (1) while categorically refusing to engage with discovery probing the substance of that defense.
3. **Defendant's pending Motion for Leave to Serve Excess Interrogatories** (filed April 15, 2026). The present Motion to Compel is limited to Interrogatories Nos. 1 through 20 and is without prejudice to the relief sought in the Motion for Leave, which addresses Interrogatories Nos. 21 through 37.
4. **Defendant's Motion for Leave to File First Amended Counterclaim** (filed concurrently herewith on May 18, 2026, under MCR 2.118(A)(2)). The proposed First Amended Counterclaim explicitly pleads common-law conversion and statutory conversion under MCL 600.2919a on the financial-misconduct and personal-property facts already pleaded in the original Counterclaim. The deemed-admission findings sought in Section II.F of the present Motion are procedurally referenced in Paragraphs 94 through 96 of the proposed First Amended Counterclaim.

VII. RELIEF REQUESTED

WHEREFORE, Defendant/Counter-Plaintiff respectfully requests that the Court enter an Order:

- A.** Determining, pursuant to MCR 2.312(B)(3), that Plaintiff/Counter-Defendant's Answers to

Defendant's First Set of Requests for Admissions Nos. 1 through 53 are insufficient and that the matters set forth therein are **deemed admitted**;

B. Compelling, pursuant to MCR 2.309(B) and MCR 2.313(A)(2)(b), full and complete Answers to Defendant's First Set of Interrogatories Nos. 1 through 20, in writing and under oath, within fourteen days of entry of the Court's Order, without prejudice to Defendant's separately pending Motion for Leave to Serve Excess Interrogatories;

C. Compelling, pursuant to MCR 2.310(C) and MCR 2.313(A)(2)(b), a written response to and production of all documents responsive to Defendant's First Set of Requests for Production of Documents Nos. 1 through 58, with privilege log conforming to MCR 2.302(B)(7) for any documents withheld, within thirty days of entry of the Court's Order;

D. Entering sanctions, pursuant to MCR 2.313(B)(2), in the form of **default judgment on Defendant's Counterclaim as a discovery sanction**, independent of the pending Motion for Default Judgment under MCR 2.603(B)(3); or in the alternative, the relief specified in Section V.D above;

E. Awarding Defendant his reasonable expenses, including filing fees and costs incurred in preparing and filing this Motion, pursuant to MCR 2.313(A)(5)(a) and MCR 2.313(B)(2); and

F. Granting such further relief as the Court deems just and equitable.

Respectfully submitted,

/s/ Conrad A. Rockenhaus

CONRAD ALAN ROCKENHAUS

Defendant/Counter-Plaintiff, pro se

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Dated: May 18, 2026

CERTIFICATE OF SERVICE

I, Conrad Alan Rockenhaus, hereby certify that on the date set forth below, I served a true and correct copy of the foregoing **Defendant/Counter-Plaintiff's Motion to Determine Sufficiency of Answers to Requests for Admissions, to Compel Responses to Interrogatories and Requests for Production of Documents, and for Discovery Sanctions** upon counsel of record for Plaintiff/Counter-Defendant by electronic mail pursuant to MCR 2.107(G), addressed as follows:

Lisa R. Baker, Esq. (P82555)
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Plymouth, Michigan 48170
lisabaker@aldrichlegalservices.com

with cc by electronic mail to:
kris@aldrichlegalservices.com

Courtesy first-class United States Mail to follow under separate cover.

I declare under penalty of perjury that the foregoing is true and correct.

Executed on May 18, 2026, at Ann Arbor, Michigan.

/s/ Conrad A. Rockenhaus

CONRAD ALAN ROCKENHAUS

Defendant/Counter-Plaintiff, pro se